

Chargeback Evidence

Case number: D-93497819
Reference number: P58QC2B36192M1000000AP1
Chargeback Reason Code: 4553

To whom it may concern:

The chargeback for £3,150.00 GBP received on 18 March 2026 03:28:06 UTC for the payment authorized on 02 March 2026 15:40:09 UTC is invalid because:

The product received was as advertised

Please review the document below that outlines the following:

- **Order Details:** merchant details and payment details

Please see our Appendix for the following supporting documents:

- [1] Receipt
- [2] Customer Communication
- [3] Customer Signature
- [4] Additional Information

Order Details

Merchant Details

Name:	propanefitness.com
Website:	http://propanefitness.com
Location:	Newcastle, GB
Business Description:	Nutritional coaching

Payment Details

Transaction Amount:	£3,150.00 GBP
Transaction Date:	02 March 2026 15:40:09 UTC
Transaction Type:	Purchase
Authorization Code:	246645
Acct Number (last 4):	1049
CVV/CVC Code:	PASS: The CVV/CVC provided by the customer is a perfect match to the CVV/CVC on file with the issuing bank
AVS Code:	L. Provided by issuer at authentication
AVS Zip Code Check:	PASS: The ZIP/Postal code provided by the customer is a perfect match to the ZIP/Postal code on file with the issuing bank

Customer Details

Name:	William Marceau
Email Address:	wmarceau@marceausolutions.com
Billing Address:	34104, US
Purchase IP Address:	69.242.254.222 —

A copy of the customer signature may be found in Appendix [3].

A copy of our communications with the customer may be found in Appendix [2].

Product Description

3150 balancing payment propanebusiness - Copy

A receipt may be found in Appendix [1]

Case number: D-93497819, Attachment: 1



Receipt from PropaneFitness

Receipt #1001-9268

AMOUNT PAID	DATE PAID	PAYMENT METHOD
£3,150.00	Mar 2, 2026, 3:40:09 PM	 - 1049

SUMMARY

3150 balancing payment propanebusiness - Copy	£3,150.00
---	-----------

Amount paid	£3,150.00
--------------------	------------------

If you have any questions, contact us at admin@propanefitness.com.

Something wrong with the email? [View it in your browser.](#)

You're receiving this email because you made a purchase at PropaneFitness, which partners with Stripe to provide invoicing and payment processing.



★ Phil Charlton 🌙 05:24 PM
<https://us02web.zoom.us/j/87875884245>

MAR 05



William Marceau 03:37 PM
I just got the email with my signed invoice this morning after signing the terms sent from renni however I dont see any changes to my account yet ?



Phil Charlton 🌙 03:42 PM
I just came in to see where you were up to. Originally you put the wrong email address in which is what has caused the issue.
You should have the start here/unlock access section now, if you click through that it will open up the other modules 📄



Phil Charlton 🌙 03:42 PM



William Marceau 03:44 PM
ok thank you

MAR 12



Phil Charlton 🌙 11:29 AM
Hi William, how are you getting on. I know you messaged regarding a refund so I just wanted to get in touch to see where you're up to with everything?

MAR 14

NEW



Phil Charlton 🌙 12:54 PM
Morning William, I'm going to give you a call today to talk through the emails you've sent. Until yesterday I wasn't aware this had been raised, so I'm sorry for the delay in getting back to you.
It looks like the request initially went through the front-end sales team, who don't handle refund requests. These are normally managed directly between the member and the coach, which is why it didn't reach me sooner.
I appreciate your patience so far and I'll speak with you shortly so we can go through everything together.

Thursday, March 5, 2026

Case number: D-93497819, Attachment: 3

Welcome aboard!

Signed contract, terms & conditions, and invoice below:

Client contract, refund policy and invoice

By signing below, I confirm that:

- I have read and understood the terms outlined in this agreement.
- I agree to be bound by these terms and conditions for participation in the programme.
- I acknowledge receipt of the invoice issued for this programme and confirm that the amount stated is correct, and I agree to pay this in full.

Name

William Marceau

Signature (Write with mouse/finger)



Contract date:

Thursday, March 5, 2026

Please enter the same email address that you used to purchase. (Using the same email is essential to unlock your access).

wmarceau@marceausolutions.com

Invoice Number: INV-6485333402225932830

Total amount due: £6300

I understand that this payment covers coaching services provided digitally as described in my programme agreement, and I acknowledge that services have been received or are currently being delivered.:



Signed Terms of Use

Summary / Key points:

What We Provide:

12-week business mentorship program + followed by rolling monthly membership

Pulse software included (12 weeks)

1-on-1 coaching, workshop, Hotseat + community access

Goal: 30 online clients

Guarantee: Lifetime access to programme materials and community support. Full details

Payment & Pricing

Payment required regardless of usage

Monthly billing: 24-hour cancellation notice

Post-program membership + coaching: optional monthly fee

Pulse software: £79/month after initial period

Case number: D-93497819, Attachment: 3

Eligibility

Must be 18+ years old

Application approval required

Health questionnaire (PAR-Q) mandatory (For fitness services)

We reserve right to deny service

UK law governs these terms

Your Responsibilities

Comply with all business laws & regulations

Handle your own advertising/marketing compliance

Manage GDPR, tax laws, liability

Use services appropriately

Complete assigned program activities

Important Warnings

- No Refunds After 14 Days: All sales are final after the initial 14-day period.

- Refund eligibility is subject to requirements outlined below. Steps to get a refund are clearly laid out below.

- Immediate Access = Waived Cooling-Off period: Accessing materials waives your 14-day cancellation rights

- No Pausing: Program cannot be paused (medical emergencies excepted)

- Payment Plans: These are installment plans, not memberships - full payment still required

Introduction

1.1 Thank you for visiting www.PropaneFitness.com and Propane-business.com ("the Website"). The Website is operated and owned by Propane Fitness Limited ("we", "us", "our" or "Propane Fitness"). In case of sale or business amalgamation, we reserve the right to transfer the agreement to a relevant third party. These Terms are governed by the laws of England and Wales, and shall be subject to the jurisdiction of its courts.

By reading information on Propane Fitness via the Website, you agree to follow the instructions provided on the Website and agree to the following Terms and Conditions. Once your application for a service from Propane Fitness (either as a paid Member in accordance with these Terms, or as a guest Member) has been accepted by Propane Fitness in accordance with these Terms and Conditions, you shall become a member of Propane Fitness ("you", "your", or "Member").

1.2. PLEASE MAKE SURE YOU READ THESE TERMS AND CONDITIONS ("Terms") in conjunction with the Disclaimer and the Privacy Policy on the Website, as both the Disclaimer and the Privacy Policy are incorporated in to these Terms and it is important that you read and understand the Disclaimer and Privacy Policy in addition to these Terms as you will be bound by these in your arrangements with us. By registering to become a Member with us and using the Website, you are agreeing to be bound by these Terms, as well as the terms of the Disclaimer and the Privacy Policy and warrant that you have the right, authority and capacity to enter into and be bound by these Terms. If you do not wish to be bound by these Terms and any other documents referred in these Terms, then please do not submit an application to register for a transformation.

1.3 We may change our Terms from time to time and may do so without notice. We will let you know what

these changes are by updating them to this page, but it is your responsibility to check for updates. Changes will become effective as soon as they are posted on this page, therefore if you continue to use the Website after the posting of these changes to the Terms, it means that you accept such changes. **Case number: D-93497819, Attachment: 3**

1.4 We may update and change our Website from time to time to reflect changes to our users' needs and business priorities. We will try to minimise any disruption this may cause. 1.5 We do not guarantee that our Website, or any content on it, will always be available or be uninterrupted. We may suspend, withdraw or restrict the availability of all or any part of the Website for business and operational reasons.

1.6 You must be at least 18 years old to use the information on this Website and to apply for any services with PropaneFitness. PropaneFitness reserves the right to deny services to anyone and to refuse any applications for services, in its own discretion, and no-one shall become a Member of PropaneFitness until they receive a confirmation email from Propane Fitness confirming that their application for Membership has been accepted. Once an applicant has been contacted by PropaneFitness confirming that their application for services has been accepted, then that applicant shall become a 'Member' of PropaneFitness and subject to the provisions of these Terms.

1.7 Any information given freely on the Website or any programs advised via any of our services are for information purposes only, and are written with drug free athletes in mind. We do not condone the use of any performance enhancing drugs and using these is at your own risk.

2 Privacy Policy

2.1. We take your privacy very seriously and agree to only use your Personal Information in accordance with our Privacy Policy set out on this Website. Please read our Privacy Policy to see how we use your Personal Information.

3 Links

3.1 Our Website may include links to, or details of information provided from other resources or internet sites. You take full responsibility for the use of any other sites and for using (or making the decision to use) any information obtained from such sites, purchase any of the products or services mentioned on another internet site and we shall not be liable in relation to any information provided on sites linked through from the Website. Remember your contract for any such other products and services will be with the provider of that internet site, not with us.

3.2. We are happy for you to link to our Website if you comply with the provisions of this Clause 3, and all applicable laws. Any site, service, company or individual that links to our Website must not:

3.2.1 change, alter or distort any content on the Website;

3.2.2 misrepresent its relationship, or present false information about PropaneFitness and/or any third parties referenced on the Website or information regarding other Members;

3.2.3 be a site that does not comply with all relevant laws and regulations or a site that contains content which could be considered as distasteful or offensive.

3.3 Where our Website contains links to other sites or websites and resources provided by third parties these links cannot be and are not guaranteed to be free from bugs or viruses. You are responsible for configuring your information technology, computer programmes and platform in order safely to access our Website or any linked content. You should use your own virus protection software.

3.4 If you breach any of the terms in this Clause 3, we have the right to require your link(s) to be removed and to take any appropriate legal action, and/or terminate your access to any programmes.

Our Programme: What We Provide

By enrolling in the Propane Business mentorship program, you will receive access to the following services and resources:

1. Comprehensive Business Coaching:

Tailored guidance from experienced coaches to help you grow and streamline your online coaching business.

2. Proven Marketing Frameworks:

Access to our tested systems for lead generation, sales, and client delivery, designed specifically for fitness professionals.

3. Community and Support:

Membership in a community of like-minded professionals, along with regular live Q&A hotseat sessions to troubleshoot challenges and share best practices.

Case number: D-93497819, Attachment: 3

4. Software Companion (Pulse):

Exclusive use of Pulse, our custom software companion, to track and manage your client interactions and marketing performance throughout the program. After this period, continued access is available through an ongoing monthly coaching fee for active members or as a standalone subscription. Please refer to our Terms of Use for detailed information on software access and associated fees.

5. Educational Resources:

Immediate access to our mentorship curriculum, including video modules, workbooks, and templates covering all aspects of running a profitable online coaching business.

6. Personalized Onboarding and Check-ins:

A structured onboarding process with a dedicated success manager to set clear goals, alongside weekly progress reviews to stay on track.

7. Guarantee Support:

As outlined in our guarantee, if you meet the participation criteria and do not achieve the specified client growth, we will continue working with you at no additional cost until you do. Full details are available here. Please note: Our services are designed to support your efforts in building a scalable online business. Success depends on your consistent application of the strategies provided, including regular participation in coaching calls and execution of the recommended action steps. Refer to our disclaimer for full details. What we don't provide: To ensure we can serve you best and meet your expectations, please also refer to our 'anti-feature list'.

Provision of Services and Deliverables

1. Program Overview: We commit to collaborating with you to develop and implement comprehensive sales, marketing, and coaching systems, aiming to onboard 30 online clients within a 12-week timeframe. Should this objective not be met within the initial period, we will continue to work with you at no additional cost until the target is achieved. To honour this commitment, we offer lifetime access to our course materials, specific coaching clinics, and community resources, ensuring ongoing assistance as needed.

2. Four-Step Process:

- Define and Clarify Your Target Market and Marketing Message: We provide guidance and templates to identify your ideal client profile and craft a compelling marketing message to enhance your online presence.

- Build the 14-Day Automated Selling System: We provide guidance for you to build an automated system designed to convert leads into clients over a 14-day period.

- Develop the Coaching Program with Automated Client Systems: We will guide you in creating a structured coaching program complemented by automated systems to manage client interactions efficiently.

- Launch Instagram and Facebook Advertising Campaigns: We will support you in initiating targeted advertising campaigns to drive traffic to your service.

3. Deliverables:

- Personalised Access: You will receive unique login credentials to our training portal, which houses comprehensive modules, downloadable resources, templates, case studies, and guides. This platform is designed to provide a thorough understanding of the systems and their implementation. Access is granted for the duration of the program and continues thereafter to support your ongoing development.

- Technical Setup and Customization: We provide access to a dedicated portal where the foundational systems are pre-configured. Working alongside your assigned coach, you will tailor these systems to align with your specific business model, niche, and offerings. Utilization of this portal is optional but recommended to streamline setup processes.

- Coaching Clinics: Multiple times per week, we offer "coaching clinics" via Zoom. You can book one-on-one sessions as frequently as needed to receive personalized guidance and support.

- Private Coaching Community: Access to an exclusive group of peers allows for the exchange of insights,

discussion of strategies, and mutual support. This community serves as a platform to ask questions, share experiences, and observe the application of program principles by others.

- One-on-One Coaching Support: Onboarding call and 12 weeks of access to a dedicated coach. This channel facilitates the sharing of voice notes, document reviews, messages.

Case number: D-93497819, Attachment: 3

4. Program Duration and Renewal:

- Initial Term: The program spans an initial period of 12 weeks, commencing upon the activation of your access credentials.
- Renewal Terms: Post the initial term, ongoing one-on-one coaching and extended software access are provided on a monthly basis. This continuation auto-renews, but is entirely optional, carries no minimum commitment, and can be canceled at any time.

5. Payment Terms:

- Program Fee: The total investment for the program is subject to the specific terms discussed during the enrollment process depending on the programme offered and starting point. This fee encompasses lifetime access to program materials, coaching clinics, and community resources, as well as 12 weeks of dedicated one-on-one coaching and complimentary access to our proprietary software solution.
- Post-Program Services: After the initial 12-week period, continued access to one-on-one coaching and the software platform is available for a monthly fee, as per the terms outlined during enrollment. This service is optional and can be discontinued at your discretion.

6 Payment Terms

6.1 Failure by the Member to use any of the services available for a Member through its subscription to Propane Fitness does not relieve the Member of their payment obligations under these Terms.

6.2 Potential customers can pay by Credit Card or Debit Card. Payment details, together with details of the subscription package applied for, shall be collected by us through our secure financial data collection mechanism, which transfers the details of the potential registrant and/or Member's financial data (as well as subscription package data) to PayPal, Stripe or GoCardless's online payment system for processing. The potential registrant / Member acknowledges that we hold data regarding the subscription package that is being signed up to by the potential registrant / Member, in addition to the last four digits and the expiry date of the card used to purchase the subscription package together with details on when payment of Fees are due. The potential registrant / Member further acknowledges and agrees that by sending their request for a specific subscription package, that payments for Fees are due on a recurring basis in accordance with that specific subscription package (unless the subscription is cancelled in accordance with these Terms) and therefore authorises the continual payment collection terms applicable to that specific subscription package (e.g. on a monthly basis and for a specific amount) so that PayPal, Stripe or GoCardless can collect the payment for Fees from the Member's Credit Card or Debit Card provided for payment through PayPal, Stripe or GoCardless, for PayPal, Stripe or GoCardless to forward payment of the Fees to us directly.

The potential registrant and/or Member shall NOT send credit card details to Propane Fitness directly by email or any other publicly interceptible means, electronically or otherwise. All credit card transactions shall be processed through PayPal, Stripe or GoCardless directly via the Website. Propane Fitness cannot be held responsible for the security of, or the misuse of, credit card or other personal information.

6.3 Potential registrants and/or Members should be aware that further terms and conditions required by PayPal or Stripe may apply, and can be found at www.paypal.co.uk and www.Stripe.co.uk.

6.4 Propane Fitness reserves the right to immediately terminate a Member's account and/or service for any unpaid (in whole or part) period of Membership subscription (with or without notice). Termination of service in no ways relieves or excuses the Member from any obligation to pay outstanding charges or expenses. In the event Propane Fitness starts collection processes of any type, the Member shall be liable for all collection costs, including reasonable legal costs on a full indemnity basis..

6.5 Propane Fitness reserves the right to terminate a Member's account and/or service for any reason, on

serving notice to the Member at any time by email to the Member.

6.6 Propane Fitness reserves the right to terminate a Member's account and/or service immediately if a Member has used the Website for unsuitable or inappropriate means or has behaved in an unsuitable manner, as determined by Propane Fitness in its entire discretion. The Member shall not be entitled to any refund of Fees if Propane Fitness terminates Membership in accordance with this Clause 6.6.

6.7 The Fees chargeable to paid-for subscription Members may exclude or include any applicable value added tax (VAT), or any other applicable tax or levy, that Propane Fitness may charge in addition to the Fees.

7. Refund Policy for PropaneFitness and PropaneBusiness Services

7.1 Eligibility for Refund

Immediate programme access and Waiver of Cancellation Rights

By purchasing our mentorship program, you acknowledge and agree that all digital content, resources, and services are fully accessible immediately upon purchase. In accordance with UK Consumer Contracts Regulations, by accessing these materials, you therefore waive your right to the 14-day cooling-off period typically available for distance selling. Once access has been granted to the program's content, no refunds or cancellations will be provided, except as stipulated in our refund policy below.

Refund Policy: Within 14 Days of Purchase: We instead offer a full refund if the refund request form has been successfully completed within the first 14 days of purchase. The refund request form must be completed with evidence of eligibility within 48 hours of initiating the refund request.

After this initial period, refunds are not available for any reason: All sales are final thereafter.

7.2 Refund Eligibility for PropaneBusiness Programme

To qualify for a refund based on the Programme, the following conditions must be met:

Completed the onboarding process, including joining the Members Portal, and Pulse (our software companion).

Attended the onboarding call with the designated 121 coach.

Completed all modules and assignments associated with the first 2 weeks in the member's portal.

Engaged at least twice with the 121 coach in the members portal.

Raised any program-related difficulties or confusion with the 121 coach in the members portal or via email at least 72 hours before requesting a refund, allowing reasonable time for assistance.

Participated in at least 2 Q&A "hotseat" calls and asked a question during each call.

Checked in at least once on the weekly check-in post in the community.

Met the targeted volume of lead generation activity as per their chosen traffic source, outlined in the programme.

Lead Generation Targets (as per your chosen traffic source)

These requirements reflect what anyone engaging with the programme in good faith would be reasonably expected to do in the first two weeks, to give you the best chance of getting a result. All evidence must be timestamped and dated between your sign-up date and date of submission.

Select your traffic method and provide evidence accordingly:

Option 1 – Bait builder + direct conversion: Screenshots showing 5 Bait Builder posts + 50 total outreach messages sent

Option 2 – Gateway: Screenshots showing 25 Gateway posts/day for 1 week + 5 Bait Builder posts total.

Option 3 – Paid Ads: Ad account screenshot showing equivalent ad spend of £10/day across 10 days.

Instructions for each method are covered in depth in the Launchpad section.

Clear, visual evidence of completing the above steps must be provided for eligibility.

7.3 Refund Exclusions: Refunds are not granted for reasons save as provided by law. Such reasons include, but are not limited to, changes in career or business direction, availability, schedule, or personal circumstances.

7.4 Refund Request Process: To initiate a refund request, the member must complete the refund request form provided by PropaneFitness or PropaneBusiness on request.

7.5 Breach of Refund Policy and Payment Plans

• Any attempt to bypass our refund policy constitutes a breach of contract. This will result in immediate

rejection of your refund request, removal from the programme, and we reserve the right to counterclaim for any outstanding amounts owed to us, plus legal costs.

Case number: D-93497819, Attachment: 3

• If you are on a payment plan, failure to pay an instalment when due will result in suspension of programme access until payment is made. As long as payments are made in accordance with the plan and you do not breach the refund policy, we will support you in good faith and will not engage third-party debt collection.

• If you do initiate a payment dispute in an attempt to circumvent our refund policy, constituting "use of services followed by repudiation," particularly involving fraudulent misuse or misuse of section 75 dispute reason codes, we reserve the right to recover the outstanding balance and to refer the matter to a collections agency.

7.6 All PropaneFitness payments that include a recurring element require a period of notice for cancellation. Accounts billed monthly require a 24 hour notice period. Accounts billed every 3-12 months require a 1 month notice period.

7.7 By continuing to pay PropaneFitness on a monthly basis, you are expressing your continued interest in our programmes and therefore refunds are not considered for previous months of service already delivered. Equally, no refunds are for coaching periods in the past even if the service was not fully consumed in this time.

Clients are required to fulfil their payment obligations, which is not contingent upon actual use of the services provided. Regardless of the extent to which the client utilises the services, including non-use, the subscriber remains responsible for the payment of the subscription fee as scheduled.

7.8 No-Pause Policy: The program cannot be paused or interrupted. Exceptions will only be considered in cases of severe medical emergencies, with written documentation required for consideration.

7.9 Software Companion and Licensing:

Access to Pulse, our software companion, is included as part of the bundled offering during the initial 12-week program.

After the initial 12 weeks, continued access to Pulse will be:

Included in the ongoing monthly coaching fee for active coaching members, or

Available as a standalone subscription for £79 per month

Access to any aspects of coaching and our software solution is contingent upon completing payment plans. Failure to fulfill payment obligations will result in suspension of access.

The software companion is provided as part of a bundled offering and cannot be purchased or licensed independently.

Unauthorized use or attempts to separate the software companion from the bundled offering will result in termination of access.

Monthly payment schedule and notifications are outlined here.

7.10 Payment plans

In the event that a client fails to complete their payment plan as agreed upon, we reserve the right to revoke access to our services. This includes, but is not limited to:

1. Temporary Suspension: Your access to our services may be temporarily suspended until the outstanding payments are made.

2. Permanent Termination: If the payment issue is not resolved within a reasonable time frame, as determined by us, your account may be permanently terminated.

3. Legal Action: We reserve the right to take legal action to recover any outstanding amounts.

Payment plans are not a membership, but rather an instalment plan for the full price of the programme.

7.9 Deposits: Deposits made for PropaneFitness and PropaneBusiness services are refundable if no access to the programme is provided.

We reserve the right to give 6 months' notice in the event of discontinuation of the Product. In such instances, your "lifetime access" to the Propane Business Community and Hotseats will cease accordingly. Full details of our lifetime access guarantee are outlined here.

8 Our content

8.1 The copyright, trade marks, designs and any other intellectual property rights ("Intellectual Property Rights") within this Website are owned by Propane Fitness or by ~~third parties that have given us~~ permission to use them. The use of these materials by you, or any ~~third party, without our prior written~~ **Case number: D-93497819, Attachment: 3** unless specifically permitted by these Terms or by Propane Fitness with explicit prior written consent. Any unauthorised use of the images or other content may violate copyright laws, trade mark laws, the laws of privacy and publicity, and communications regulations and statutes. You acknowledge that damages may not be an adequate remedy for any infringement of our Intellectual Property Rights and that we shall be entitled to the remedies of injunction, specific performance and other equitable relief for any threatened or actual breach of Intellectual Property Rights by you and that no proof of special damages shall be necessary for the enforcement of these rights.

9 Your content

9.1 Once you have registered as a Member you may post comments on our Website in the Forum and/or blogs. The Member agrees to only post comments or information on the Forum and/or blogs in accordance with Clause 10 below and any other terms included on our Website. You acknowledge that any comments and/or information placed by you on the Website is entirely at your own risk and that Propane Fitness is not responsible for any comments made or actions taken by others from the posting of your comments and/or information. Propane Fitness does not verify the accuracy or truth of any comments and/or information placed by Members on the Website and Propane Fitness shall not be liable for an inaccuracies or untruths placed by Members on the Website.

9.2 You own any copyright in the text you post to our Community Forums and/or blogs within the Website. However, when you post any text, you expressly grant us a perpetual, unlimited, irrevocable free licence to republish that text on the Website, or as part of an edited compilation anywhere in the world.

9.3 By registering for a service at Propane Fitness you give permission for Propane Fitness to publish and reproduce your photographs in future articles. If you have any contention about anonymity, you may contact Propane Fitness and request that you are given a pseudonym or your identity is protected in the photos.

10 Community Forum

10.1 We encourage the sharing of information of our Members in our Community Forum on the Website. However, we do require you to use our Community Forum in a lawful manner and in accordance with these Terms. You may not use the Community Forum for any illegal purpose and in particular, if you want to submit material to the Community Forum you must do so under the acceptable use policy.

10.1 Sharing Community Contributions for Testimonials

By participating in our community or chats, you acknowledge and agree that we may share content such as messages, screenshots, or clips for testimonial purposes. We will withhold surnames and anonymise contributions fully upon request. If you wish for your contributions to remain entirely private, please notify us in advance, and we will respect your preferences to the fullest extent possible.

11 Liability

11.1. Please see our separate document which details our Disclaimer in relation to the Website. This applies for all services we offer, and the advice given is for informational purposes only.

11.2 Propane Fitness shall operate the Website and provide the services set out on the Website with reasonable skill and care.

11.3 In addition to the terms of the Disclaimer, we shall not be liable for any dissatisfaction the Member may suffer in connection with the Website and/or services of Propane Fitness.

11.4 Nothing in these Terms shall exclude or limit our liability for (a) death or personal injury caused by our negligence (as such term is defined by the Unfair Contract Terms Act 1977); (b) fraud; (c) misrepresentation as to a fundamental matter; or (d) any liability which cannot be excluded or limited under applicable law.

11.5 Subject to the foregoing, we will not be liable or responsible to you or any third person for any amount or kind of loss or damage that may result (including without limitation, any direct, indirect, punitive or consequential loss or damages, or any loss of income, profits, goodwill, data, contracts, use of money, or loss or damages arising from or connected in any way to business interruption of any type, and whether in

tort (including without limitation negligence, contract or otherwise) in connection with the services offered by the Website or the Website itself in any way or in connection with the use, inability to use or the results of use of this Website.

Case number: D-93497819, Attachment: 3

11.6 Subject to the foregoing, our liability to you for any cause whatsoever, and regardless of the form of the action, will at all times be limited to the amount of Fee paid (if any monies have been paid to us) in the calendar month prior to any such liability being incurred, if any, by you to us for the service offered on the Website during the term of a Member's Membership subscription.

11.7 By agreeing to these Terms, Members agree to fully and effectively indemnify us against all third party claims, costs, losses and/or liabilities relating to this contract and a Member's usage of the Website or actions in relation to the Website.

11.8 You are solely and exclusively responsible for complying with all applicable laws and regulations in running your business, including, but not limited to, all laws governing advertising and marketing claims, subscriptions, refunds, premium offers, privacy policy, GDPR, liability, tax laws, and all additional laws applicable to your business.

12 General

12.1 A waiver of any right under these Terms is only effective if it is in writing and it applies only to the party to whom the waiver is addressed and the circumstances for which it is given.

12.2 In the event that any provision of these Terms is declared by any judicial or other competent authority to be void, voidable, illegal or otherwise unenforceable or indications of this are received by either of the parties from any relevant competent authority it may be severed from these Terms and the remaining provisions of these Terms shall remain in full force and effect.

12.3 These Terms, and any document referred to herein, represent the entire agreement between us and the Member for the provision of any services and the Website and supersede any prior agreement, understanding or arrangement between the parties, whether oral or in writing, in relation to the services. The Member acknowledges that, in entering into the contract with Propane Fitness on these Terms, that it has not relied upon any representation, undertaking or promise by Propane Fitness or be implied from anything said or written between the parties prior to the contract being finalised, except as expressly stated in these Terms. The Member shall have no remedy in respect of any untrue statement made by Propane Fitness, whether orally or in writing, prior to the date of the contract (unless such untrue statement was made fraudulently) and the Member's only remedy shall be for breach of contract as provided in these Terms.

12.4 These Terms are made for the benefit of the parties to it and (where applicable) their successors and permitted assigns and is not intended to benefit, or be enforceable by, anyone else who is not a party to it and the provisions of the Contract (Rights of Third Parties) Act 1999 shall not apply.

12.5 Dispute Resolution Procedure

A. Mandatory Pre-Action Process

In the event of any dispute, difference, or claim arising out of or in connection with this Agreement (including any question regarding its existence, validity, termination, or the services provided), the parties agree to follow this mandatory dispute resolution procedure before initiating any other proceedings, including but not limited to payment disputes, court proceedings, or arbitration:

Step 1: Written Notice (Days 1-7)

The party raising the dispute ("Complainant") must:

Send written notice of the dispute to: admin@propanefitness.com

Include in the notice: Clear description of the dispute

What remedy/outcome is sought

Relevant dates and transaction details

Supporting evidence or documentation

The other party ("Respondent") must acknowledge receipt and provide substantive response within 7 days.

Step 2: Good Faith Negotiation (Days 8-21)

If Step 1 does not resolve the matter, the parties agree to engage in good faith negotiations for up to 14 days to attempt resolution.

Step 3: Mediation via CEDR (Days 22-50)

Case number: D-93497819, Attachment: 3

If Steps 1-2 do not resolve the dispute, the parties agree to attempt settlement by mediation in accordance with the CEDR Model Mediation

Procedure before pursuing any other remedy.

To initiate mediation, the Complainant must:

Give written notice (ADR notice) to the Respondent referring the dispute to mediation

Send copy of the ADR notice to CEDR for small claims

mediation: <https://forms.cedr.com/240392270180954>

Include copy of this Agreement and relevant documentation

Unless otherwise agreed within 14 days of the ADR notice:

The mediator will be nominated by CEDR

Mediation will commence within 28 days of the ADR notice

Both parties will participate in good faith

The CEDR initial fee will be shared equally between the parties, unless otherwise agreed; any other mediation costs will be borne as determined by CEDR or as otherwise agreed in writing between the parties.

B. Prohibition on Bypassing Dispute Resolution Process

Initiating any of the following without first exhausting Steps 1-3 above constitutes a material breach of contract:

Payment disputes (including Section 75 claims)

Court proceedings

Arbitration

Consequences of breach:

Immediate rejection of any claims

Forfeiture of any right to refund

Liability for all our legal costs on full indemnity basis

Right to counterclaim for outstanding amounts

Potential referral to collections agency

Exceptions: This dispute resolution procedure does not apply to:

Urgent injunctive relief where immediate court intervention is necessary

Debt collection proceedings after payment default where no dispute exists

Statutory rights that cannot be waived by agreement

C. Governing Law and Jurisdiction

These Terms and any dispute or claim arising out of or in connection with it or its subject matter shall be governed by and construed in accordance with the law of England and Wales.

Subject to the mandatory dispute resolution procedure in Section 12.5(A) above, the parties irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim that arises out of or in connection with these Terms.

D. Standstill During Dispute Resolution

During Steps 1-3 of the dispute resolution process:

Neither party shall initiate new legal proceedings or payment disputes

Any existing proceedings shall be stayed by mutual agreement where possible

All statutory limitation periods shall be deemed extended by the time spent in good faith dispute resolution

This standstill does not prevent either party from taking urgent protective measures

13. Pre Activity Readiness-Questionnaire ("PAR-Q")

13.1 For our fitness coaching services, we collect information about your health and medical history so

that we have as much relevant information as possible to provide with a suitable and safe exercise program, based on the information you provide to us. If you agree to any of the following statements we will be unable to accept your application for a guest or paid-for Member **Case number: D-93497819, Attachment: 3** recommend that you seek medical advice before undertaking any exercise program or strenuous physical activity;

13.1.1 a doctor or medical professional has diagnosed you with a heart condition and indicated you should restrict your physical activity;

13.1.2 when performing physical activity you frequently feel pain in your heart and/or chest;

13.1.3 in the last month, when you are not engaging in physical activity, you have experienced heart and/or chest pain;

13.1.4 you ever faint or get dizzy and lose your balance;

13.1.5 you have an injury or orthopaedic condition, such as a back, hip or knee problem, which may worsen due to a change in your physical activity;

13.1.6 you have high blood pressure and/or a heart condition for which a Doctor or Medical Professional is currently prescribing medication;

13.1.7 you are pregnant, or think you may be pregnant;

13.1.8 you have insulin dependent diabetes;

13.1.9 you are over the age of 65 and not accustomed to vigorous exercise;

13.1.10 you know of any other good reason you should not exercise or increase your physical activity even if you wanted to.

By signing up for a service you also accept full responsibility for any loss or damage as a result of the above issues, or anything else. The advice we give is for informational purposes only and is not to replace the advice of your doctor. We shall not be liable for any loss or damage of whatever nature and howsoever caused by reason of a failure properly and accurately to answer any question on the PAR-Q.

13.2 We may ask you to provide us with an update to the PAR-Q information that you provide to us when submitting your application for services. If we are concerned with any of the responses we receive to any updates of this information, we reserve the right to terminate service in accordance with Clause 6.5.

14. No text or data mining, or web scraping

14.1 You shall not conduct, facilitate, authorise or permit any text or data mining or web scraping in relation to our Website or any services provided via, or in relation to, our site whether by robot, bot, scraper, spider or other automated device, programme, tool, algorithm, code, process or methodology to access, obtain, copy, monitor or republish any portion of this Website or any data, content, information or services accessed via the same.

14.2 The provisions in this clause 13 should be treated as an express reservation of all our rights howsoever provided in this regard.

Company Details:

Propane Fitness Ltd

VAT Number: 266679253

69 Church Way, North Shields NE29 0AE

Sales Kick: Addendum

TERMS OF SERVICE: Sales Kick

Effective Date: [13/3/26]

1. Introduction

Welcome to Propane Fitness Ltd ("we," "us," or "our"). These Terms of Service ("ToS" or "Agreement") govern your access to and use of our services, including coaching, consulting, software and educational services (collectively, the "Services"). By accessing, using, or interacting with our Services, you ("User," "you," or "your") agree to be bound by these ToS and our Privacy Policy, which is incorporated by reference into this Agreement. If you do not agree to these ToS, you must discontinue your use of the Services

immediately.

This Agreement forms a legally binding contract between you and Propane Fitness Ltd. Please read these ToS carefully. By accepting these ToS, you also acknowledge and **Case number: D-93497819, Attachment: 3** contained in Section 15, which waives your right to a jury trial and to participate in class actions.

2. Definitions

"Account": The account you create when you register to use our Services.

"Content": Any and all text, data, images, graphics, user interfaces, visual interfaces, photographs, trademarks, logos, sounds, music, artwork, computer code, and other materials provided through the Services.

"Data": Any information, including Personal Data, that you provide or that is collected from you in connection with your use of the Services.

"Personal Data": Any information relating to an identified or identifiable individual, as defined under applicable privacy laws.

"Sales Kick": The platform provider we use as a subcontractor for processing and enriching your data, operating solely on our behalf and under our control. Sales Kick is not a party to this Agreement.

"Third-Party Services": Any services or products provided by entities other than Propane Fitness Ltd that are made available through our Services.

3. Acceptance of Terms

By accessing or using the Services, you affirm that you are at least 18 years of age, or the age of majority in your jurisdiction, and are capable of entering into a legally binding agreement. If you are using the Services on behalf of a legal entity, you represent and warrant that you have the authority to bind that entity to these ToS.

4. Modification of Terms

We reserve the right, at our sole discretion, to modify, update, or change these ToS at any time. Such changes will be effective upon posting the updated ToS on our website or platform. You should review these ToS regularly. Your continued use of the Services after any changes to these ToS constitutes your acceptance of the revised ToS. If you do not agree to the new terms, you must stop using the Services immediately.

5. Services Overview

a. Description of Services

Propane Fitness Ltd provides educational, consulting and software services. These Services are designed to assist and inform coaches with lead generation and fulfillment systems.

b. Third-Party Subcontractors

To enhance the functionalities of our Services, we use the Sales Kick platform as a subcontractor to process and enrich your data. Sales Kick operates solely under our direction and is not a party to this Agreement. You will not interact directly with Sales Kick, and your data will be processed as part of our integrated service offering.

c. Service Availability

While we strive to ensure the continuous availability of our Services, we cannot guarantee that the Services will be uninterrupted or error-free. We reserve the right to modify, suspend, or discontinue any part of the Services at any time without notice.

6. User Obligations and Conduct

a. Compliance with Laws

You agree to comply with all applicable laws, regulations, and industry standards when using the Services, including but not limited to privacy, data protection, intellectual property, and export control laws.

b. User Account Responsibilities

Account Information: You agree to provide accurate, current, and complete information when creating your Account and to update such information as necessary.

Security of Account: You are responsible for maintaining the confidentiality of your Account credentials and for all activities that occur under your Account. You must notify us immediately if you suspect any unauthorized use of your Account.

c. Prohibited Activities

You agree not to:

Use the Services for any illegal, unauthorized, or prohibited purposes. **Case number: D-93497819, Attachment: 3**

Infringe on the rights of others, including intellectual property rights.

Interfere with or disrupt the Services, servers, or networks connected to the Services.

Use any automated means (e.g., bots, scrapers) to access or collect data from the Services without our express permission.

Impersonate any person or entity or misrepresent your affiliation with a person or entity.

Use the Services to transmit any malicious software, viruses, or other harmful code.

Engage in any activity that could damage, disable, or impair the functioning of the Services.

7. Data Privacy and User Consent

a. Data Collection and Processing

Personal Your data may be enriched through the Sales Kick platform, which processes your information on our behalf to enhance the accuracy, relevance, and utility of the Services we provide to you.

b. User Consent

By using our Services, you consent to:

The collection, processing, and sharing of your data as described in these ToS and our Privacy Policy.

The use of your data for the purpose of improving, customizing, and optimizing the Services, including through data enrichment and calendar management.

The sharing of your data with Sales Kick, our subcontractor, solely for the purpose of providing the Services.

The transfer of your data to and from third-party service providers, as necessary to deliver the Services.

I understand by submitting an application to book a sales call, I am providing written instructions authorizing Propane Fitness Ltd and affiliates to obtain my personal credit profile or other information from credit reporting agencies under the FCRA solely to conduct a credit pre-qualification. I further understand that this is a soft pull and will not harm my credit in any way whatsoever.

c. Data Sharing and Disclosure

Subcontractors and Service Providers: We may share your data with subcontractors, including Sales Kick, who assist us in providing the Services. These parties are bound by confidentiality and data protection obligations and will not use your data for any purpose other than to perform the Services on our behalf.

Legal Compliance: We may disclose your data to comply with legal obligations, such as in response to court orders, legal processes, or government requests.

d. Data Security

Security Measures: We implement reasonable security measures to protect your data from unauthorized access, alteration, disclosure, or destruction. However, no method of transmission over the internet or electronic storage is completely secure, and we cannot guarantee absolute security.

User Responsibilities: You are responsible for safeguarding the device and network through which you access the Services. You should ensure that your software and systems are up to date and that you take appropriate precautions to protect your data.

8. Intellectual Property Rights

a. Ownership

All intellectual property rights in the Services, including but not limited to software, content, trademarks, and logos, are owned by Propane Fitness Ltd or its licensors. Your use of the Services does not grant you any rights to our intellectual property, except for the limited rights necessary to use the Services in accordance with these ToS.

b. License to Use the Services

Subject to your compliance with these ToS, we grant you a limited, non-exclusive, non-transferable, revocable license to access and use the Services for your personal or internal business purposes.

c. Restrictions

You may not:

Copy, modify, distribute, sell, or lease any part of our Services or included software.

Reverse engineer or attempt to extract the source code of any software used in the Services, except as expressly permitted by applicable law.

Use any of our intellectual property, including trademarks, logos, or other confidential information, without our prior written consent. **Case number: D-93497819, Attachment: 3**

9. Representations and Warranties

a. User Representations and Warranties

You represent and warrant that:

Authority: You have the legal authority to enter into and comply with these ToS.

Accuracy of Information: All information you provide in connection with your use of the Services is accurate, complete, and current.

Compliance with Laws: You will comply with all applicable laws, regulations, and industry standards in your use of the Services.

No Infringement: Your use of the Services does not and will not infringe on the intellectual property, privacy, or other rights of any third party.

No Harmful Activities: You will not engage in any activity that is harmful to us, Sales Kick, our other users, or the general public, including the transmission of viruses, malware, or other harmful code.

b. Third-Party Client Representations and Warranties

Propane Fitness Ltd represents and warrants that:

Compliance with Laws: We will comply with all applicable laws, including data protection and privacy laws, in providing the Services.

No Conflict: Our provision of the Services does not and will not conflict with any other agreement or legal obligation to which we are subject.

Data Security: We will implement reasonable security measures to protect your data and ensure that our subcontractors, including Sales Kick, comply with applicable data protection obligations.

Service Continuity: We will make commercially reasonable efforts to ensure the continuous availability of the Services, subject to the limitations set forth in these ToS.

c. Disclaimer of Warranties

Except as expressly provided in these ToS, the Services are provided "as-is" and "as-available" without any warranty of any kind, either express or implied, including but not limited to implied warranties of merchantability, fitness for a particular purpose, non-infringement, or any warranties arising from course of dealing, course of performance, or usage in trade.

10. Limitation of Liability

a. Exclusion of Damages

To the fullest extent permitted by law, Propane Fitness Ltd, Sales Kick, and their affiliates, officers, agents, employees, and partners shall not be liable for any indirect, incidental, special, consequential, or punitive damages, or any loss of profits, revenues, data, or use, arising out of or related to your use of the Services, even if advised of the possibility of such damages.

b. Cap on Liability

In no event shall the total liability of Propane Fitness Ltd, Sales Kick, and their affiliates to you for all claims arising out of or related to these ToS or your use of the Services exceed the amount you paid to us for the use of the Services in the 12 months preceding the claim.

c. No Liability for Third-Party Services

We are not responsible for any Third-Party Services made available through the Services. Your use of Third-Party Services is at your own risk, and we make no representations or warranties regarding such services.

11. Indemnification

You agree to indemnify, defend, and hold harmless Propane Fitness Ltd, Sales Kick, and their affiliates, officers, agents, employees, partners, and licensors from any claim, demand, damages, losses, liabilities, costs, and expenses, including reasonable attorneys' fees, arising out of or related to:

Your use of the Services.

Your breach of these ToS or violation of any applicable laws or the rights of a third party.

Any claims that your use of the Services infringes the intellectual property rights of a third party.

Any data or content you provide or create through the Services.

Case number: D-93497819, Attachment: 3

12. Termination

a. Termination by You

You may terminate your use of the Services at any time by ceasing to use the Services and, if applicable, closing your Account.

b. Termination by Us

We reserve the right to suspend or terminate your access to the Services at any time, without notice or liability, for any reason, including if we believe you have violated these ToS or engaged in unlawful behavior.

c. Effects of Termination

Upon termination of your access to the Services, your right to use the Services will immediately cease. Any provisions of these ToS that by their nature should survive termination will survive, including, without limitation, ownership provisions, warranty disclaimers, indemnity, and limitations of liability.

13. Dispute Resolution and Governing Law

a. Governing Law

These ToS and any disputes arising out of or related to them will be governed by the laws of United Kingdom, without regard to its conflict of laws principles.

b. Arbitration Agreement

i. Arbitration

You and Propane Fitness Ltd agree that any dispute, controversy, or claim arising out of or relating to these ToS, the Services, or any relationship between the parties, including claims based in contract, tort, statute, fraud, misrepresentation, or any other legal theory, shall be resolved through binding arbitration using CEDR.

The arbitration shall be administered by CEDR under its applicable rules. The arbitration will be conducted by a single arbitrator with experience in resolving disputes related to the type of services provided by Propane Fitness Ltd. The arbitrator's decision shall be final and binding on all parties.

The arbitration shall take place online. If the amount in controversy does not exceed \$10,000, you may choose to have the arbitration conducted by telephone, video conference, or based solely on written submissions, subject to the discretion of the arbitrator.

The parties shall share the costs of arbitration, including arbitrator fees, equally, unless the arbitrator determines that such apportionment is not appropriate given the circumstances of the case. Each party shall bear its own legal fees and expenses, unless the arbitrator awards legal fees and costs to the prevailing party under applicable law.

You agree that any arbitration or proceeding shall be conducted only on an individual basis and not as a class, consolidated, or representative action. The arbitrator may not consolidate more than one person's claims or preside over any form of a representative or class proceeding.

If any portion of this Arbitration Agreement is found to be unenforceable, the remaining portions shall remain in full force and effect. However, if the class action waiver in this Arbitration Agreement is found to be unenforceable, the entire Arbitration Agreement shall be null and void.

In the event that this Arbitration Agreement is found not to apply to a dispute, you and Propane Fitness Ltd agree that any non-arbitrable disputes shall be resolved exclusively in the courts located in Newcastle, United Kingdom, and you consent to venue and personal jurisdiction in such courts.

Any arbitration proceedings, documents, and information exchanged between the parties in connection with such proceedings, and any final arbitration award, shall be strictly confidential, except as necessary to enforce or challenge the arbitration award in a court of law, or as required by law.

14. Miscellaneous

a. Entire Agreement

These ToS, together with our Privacy Policy, constitute the entire agreement between you and Propane Fitness Ltd concerning the Services and supersede any prior agreements, whether written or oral.

b. Severability

If any provision of these ToS is found to be unlawful, void, or unenforceable, then that provision shall be deemed severable from these ToS and shall not affect the validity and enforceability of any remaining provisions.

Case number: D-93497819, Attachment: 3

c. Waiver

No waiver of any term of these ToS shall be deemed a further or continuing waiver of such term or any other term, and Propane Fitness Ltd's failure to assert any right or provision under these ToS shall not constitute a waiver of such right or provision.

d. Assignment

You may not assign your rights or obligations under these ToS without our prior written consent. We may assign our rights and obligations under these ToS without restriction.

e. Force Majeure

We shall not be liable for any failure or delay in our performance under these ToS due to causes beyond our reasonable control, including, but not limited to, acts of God, war, terrorism, strikes, supply chain disruptions, pandemics, power outages, or governmental restrictions.

f. Headings

The headings used in these ToS are for convenience only and have no legal or contractual effect.

g. Contact Information

For any questions or concerns regarding these ToS, please contact us via email.

Welcome aboard!

Date

Thursday, March 5, 2026

Case number: D-93497819, Attachment: 3

After pressing 'submit', please follow the next steps carefully.

Case number: D-93497819, Attachment: 3

CHARGEBACK DISPUTE RESPONSE

Propane Fitness Ltd — Confidential

Case number: D-93497819, Attachment: 4

Merchant: Propane Fitness Ltd
Address: 69 Church Way, North Shields NE29 0AE
VAT: 266679253 | Email: admin@propanefitness.com

Cardholder: William Marceau
Email: wmarceau@marceausolutions.com | Location: Naples, Florida, US

Response Date: 25 March 2026 | Deadline: 4 April 2026
Card Network: American Express | Reason Code: 4553 — Product Unacceptable

DISPUTED TRANSACTIONS

Dispute ID	Amount	Due	Reason
du_1TCAmAF42QmTryTbVydK4EUK	£3,150.00	4 Apr 2026	4553 — Product unacceptable
du_1TCAIvF42QmTryTbDWiMpJwu	£3,150.00	4 Apr 2026	4553 — Product unacceptable
Total: £6,300.00			

1. EXECUTIVE SUMMARY

Propane Fitness Ltd disputes both chargebacks (total £6,300) filed by William Marceau under American Express reason code 4553 (Product Unacceptable). The cardholder purchased our 12-week business mentorship programme on approximately March 2, 2026. He was immediately granted full access to all programme deliverables, signed the Terms of Use on March 5, 2026, and engaged with his assigned 1-2-1 coach.

On March 6 (Day 4 of the 14-day refund window), the cardholder requested a refund. He was provided with the refund proof-of-work form as required by the terms he signed. He refused to complete it and instead filed chargebacks on March 14. This constitutes a breach of the agreed Terms of Use (Section 7.5) and mandatory dispute resolution procedure (Section 12.5).

The product was delivered as described, the cardholder accessed all services, and a clear refund process was communicated and declined. The chargebacks should be reversed in full.

2. TIMELINE

- **~Mar 2:** Cardholder purchases programme. Two payments of £3,150 processed. Immediate access to Circle community, materials, and onboarding (Exhibit A).
- **Mar 3–4:** 1-2-1 coach Phil Charlton assigned. Zoom call scheduled, Notion dashboard created, Pulse access arranged (Exhibits D, E).
- **Mar 5:** Cardholder signs Terms of Use including refund policy. Coach resolves access issue — all modules unlocked (Exhibit F).
- **Mar 6:** Cardholder sends refund request (Day 4 of 14-day window).
- **Mar 7–12:** Follow-up correspondence. Sales rep directs to coaching team. Coach reaches out on Mar 12 (Exhibit F).
- **Mar 14:** Coach calls cardholder twice, leaves voicemail (Exhibit C). Refund form provided with two resolution options (Exhibit B).
- **Mar 14:** Cardholder files chargebacks on both transactions instead of completing form.
- **Mar 16:** Two options restated. Cardholder refuses to withdraw or complete form (Exhibit B).

3. SERVICES DELIVERED AS DESCRIBED

The cardholder received all programme deliverables as described at the point of sale:

Case number: D-93497819, Attachment: 4

- **Community Access:** Circle account created March 2. Full programme configured (Exhibit A).
- **1-2-1 Coaching:** Dedicated coach assigned within 2 days. Individual Zoom calls, messaging, and personalised support (Exhibits E, F).
- **Personalised Dashboard:** Notion workspace with full roadmap, modules, and coaching notes (Exhibit D).
- **Programme Materials:** All modules, workbooks, and templates accessible from signup.
- **Pulse Software:** Access arranged by coach on March 4 (Exhibit E).
- **Onboarding:** Terms signed, coach assigned, dashboard created, Zoom calls scheduled.

4. REFUND PROCESS: COMMUNICATED AND DECLINED

Case number: D-93497819, Attachment: 4

The cardholder signed Terms of Use on March 5 which include a clear refund process (Section 7):

- **Section 7.1:** Refunds available within 14 days if the refund form is completed with evidence within 48 hours of requesting.
- **Section 7.2:** Specific engagement criteria must be met and evidenced.
- **Section 7.4:** The member must complete the refund request form provided by Propane.
- **Section 7.5:** Any attempt to bypass the refund policy constitutes breach of contract.
- **Section 12.5:** Mandatory dispute resolution (Written Notice → Negotiation → CEDR Mediation) before payment disputes.

The refund form was provided to the cardholder on March 14 — still within the 14-day window. Two clear resolution options were offered (Exhibit B). The cardholder refused to complete the form and refused to withdraw the chargebacks. He remains in breach of the agreed terms and owes the full contract amount of £6,300.

5. WHY REASON CODE 4553 DOES NOT APPLY

American Express reason code 4553 (Product Unacceptable) applies where goods or services are materially different from what was described or are defective. This does not apply here:

- The cardholder received exactly what was described: a 12-week mentorship with 1-2-1 coaching, community access, software, and educational materials.
- He accessed and used the services within days of purchase.
- A clear, contractually agreed refund process exists. The cardholder was directed to follow it and chose not to.
- The chargeback is being used as an alternative to the agreed refund process — not because the product was unacceptable.

6. CONCLUSION

We request that both chargebacks be reversed and the funds (£6,300) returned to Propane Fitness Ltd:

- The product was delivered as described — all deliverables accessible from date of purchase.
- The cardholder signed terms acknowledging the refund policy and payment obligations.
- A clear refund process was communicated and the form provided within the 14-day window.
- The cardholder refused to follow the agreed refund process.
- The chargebacks were filed in breach of the signed terms (Sections 7.5 and 12.5).
- The cardholder remains liable for the full contract amount.

Should you require additional information, please contact admin@propanefitness.com.

Submitted by:

Propane Fitness Operations Team
Dispute Resolution, Propane Fitness Ltd
admin@propanefitness.com

Submitted within the required timeframe with all supporting documentation.

SUPPORTING EVIDENCE — EXHIBITS

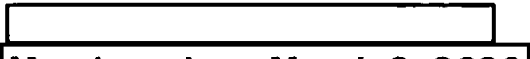
Case number: D-93497819, Attachment: 4

EXHIBIT A — CIRCLE COMMUNITY PROFILE

Case number: D-93497819, Attachment: 4

William Marceau's Circle community account showing membership since March 2, 2026.

EXHIBIT A — Community Account Acti



Cardholder set up a complete profile with professional headline and detailed bio.

EXHIBIT A (cont.) — Full Profile Set Up by Cardholder

0 points • 10 to level up



Headline configured



Detailed bio written

EXHIBIT B — EMAIL CORRESPONDENCE: REFUND PROCESS

Case number: D-93497819, Attachment: 4

Propane's response acknowledging the 14-day window and providing the refund form link.

EXHIBIT B — Propane Response: Refund Form Provided

From: Propane <admin@propanefitness.com>

To: William Marceau <wmarceau@marceausolutions.com>

Hi William,

Thank you for your email. To address your points:

- The delays you mention had occurred because you directed your correspondence to a sales representative, not your account manager, Phil. The reason we assign you an account manager is to handle all queries such as this requirement of the refund policy. You are reminded of this in Section 7.2 of the refund policy, any program-related difficulties or refund requests must be raised directly with your 121 coach in the members portal or via the official email. However, because your request was initiated within the 14-day window, there is a clear and valid route to obtain a full refund by completing the required Proof of Work form: <https://tally.so/r/mDkkyR>

Section 7.5 cited: bypassing refund policy constitutes breach. Offer to process form if disputes withdrawn.

EXHIBIT B (cont.) — Bypass = Breach (Section 7.5)

...your choice to make between you and your card issuer. However, by choosing to exercise this right instead of the established refund process constitutes an attempt to bypass our policy. Under the terms you agreed to at checkout, we immediately places the entire contract balance in default and entitles us to recover the full outstanding amount.

Terms cited: bypassing refund policy = breach of contract

- Because the bank has now frozen the funds, we cannot process the refund form or issue any money back to you. If you withdraw the disputes, we can immediately provide the form and resume your refund process. If you choose to keep the disputes open, the matter is entirely in the bank's hands, and we will pursue the full contract balance.

Offer: withdraw disputes and refund form will be processed

Two clear resolution paths: (1) withdraw and complete form, or (2) continue chargeback.

EXHIBIT B (cont.) — Two Resolution Options

Hi William,

Here is the refund form for you to complete: <https://tally.so/r/mDkkyR>

Refund form link provided

...ks, the funds are currently frozen by the bank. This means we cannot provide the form or process any refund to your original payment methods until the disputes are withdrawn and the funds are unfrozen. Their review normally takes up to 90 days.

As previously stated, under Section 7.5 of the terms you accepted at checkout, any attempt to bypass our refund policy constitutes a breach of contract. This results in the immediate rejection of your refund request and gives us the right to counterclaim for any outstanding amounts owed to us, plus legal costs.

Section 7.5 cited: bypass = breach

Option 1 – Withdraw the chargebacks and complete our refund form (fastest route) If you complete the form and withdraw the chargebacks, then once your bank unfreezes the funds, we will be able to pick up where we left off and process your refund.

Option 1: Withdraw chargebacks & complete refund form

Option 2 – Continue with the chargebacks If you choose to keep the disputes open, we will provide your proof of fulfillment and our terms. Because the chargebacks place the whole contract in default, we would be entitled to the full contract balance.

Option 2: Continue chargeback — evidence provided to bank

Please reply to let us know which option you intend to take. We would much rather resolve this directly with you than through a legal process.

Cardholder refuses to withdraw disputes or complete the refund form.

EXHIBIT B (cont.) — Cardholder

Case number: D-93497819, Attachment: 4

From: William Marceau <wmarceau@marceausolutions.com>

To: coach@propanefitness.com

Cc: admin@propanefitness.com

Phil,

Thank you for your email.

Cardholder refuses to follow agreed refund process

close this matter immediately, and I will withdraw the disputes upon confirmation that the refund has been processed. This remains the simplest path for both parties.

To be clear: I requested a refund on March 6 — Day 4 of your 14-day window. Propane did not provide the refund form required by Section 7.4, did not give a substantive response within 7 days (Section 12.5) and did not process the refund by the March 13 deadline. The chargebacks were filed only after Propane failed to act on its own

EXHIBIT C — CALL LOGS & THREAD HISTORY

Case number: D-93497819, Attachment: 4

Coach called cardholder twice on March 14 — voicemail left on first call.

EXHIBIT C — Coach Called Cardholder Twice (Mar 14)

Called William

Call 1: 1min 37s voicemail left

Phil from PropaneBusiness left a voicemail for William regarding emails he sent, seeking to discuss William's current situation and next steps.

Phil was previously unaware of recent message exchanges between William and Jim until yesterday, and wants ...

Show more

Voicemail: discussing situation and next steps

2x

Full thread history showing signed Terms (Mar 5), welcome email (Mar 4), and onboarding call.

EXHIBIT C (cont.) — Thread History: Terms, Welcome

Formal Refund Request — Propane Business Mentorship [Receipt #1257-2744 / #1001-9268]

Refund request emails in thread (Mar 7, 12)

Signed Terms of Use — Jotform — Mar 5

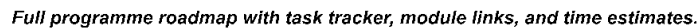
2 older messages

Welcome email (Mar 4) + Onboarding call (2m14s)

Propane Mentorship Terms of use

Case number: D-93497819, Attachment: 4

EXHIBIT D — Personalised Dashboard Cr



Task tracker with all programme modules and time estimation

- ## Roadmap: Task tracker ☒

Category: All Items			
1. Home	2. About Us	3. Product Categories	4. Contact Us
5. Services: Home Inspection, Real Estate, HVAC, Plumbing		6. Services: Commercial, Industrial, Marine, Agricultural	7. Services: Emergency, 24/7 Support
8. Case Studies		9. Testimonials	10. Blog
11. Productivity Resources		12. Training Courses	13. Webinars
14. Shop Windows		15. Newsletters	16. Privacy Policy
17. Payment Terms		18. Terms & Conditions	19. Refund Policy
20. Footer: Copyright 2024. All Rights Reserved.			
21. Footer: Privacy Policy Terms of Service Contact Us			
22. Footer: Social Media Links			
23. Footer: Newsletter Sign-up			
24. Footer: Sitemap			
25. Footer: Legal Notices			
26. Footer: Accessibility Statement			
27. Footer: Cookie Policy			
28. Footer: Data Protection Policy			
29. Footer: Environmental Policy			
30. Footer: Supplier Information			
31. Footer: Sustainability Report			
32. Footer: Quality Management System			
33. Footer: Health & Safety Policy			
34. Footer: Information Security Policy			
35. Footer: Intellectual Property Policy			
36. Footer: Anti-Bribery Policy			
37. Footer: Anti-Money Laundering Policy			
38. Footer: Anti-Slavery & Human Trafficking Policy			
39. Footer: Anti-Discrimination Policy			
40. Footer: Anti-Harassment Policy			
41. Footer: Anti-Racism Policy			
42. Footer: Anti-Sexual Harassment Policy			
43. Footer: Anti-Stalking Policy			
44. Footer: Anti-Terrorism Policy			
45. Footer: Anti-War Policy			
46. Footer: Anti-Child Labour Policy			
47. Footer: Anti-Forced Labour Policy			
48. Footer: Anti-Modern Slavery Policy			
49. Footer: Anti-Trafficking Policy			
50. Footer: Anti-Exploitation Policy			
51. Footer: Anti-Abuse Policy			
52. Footer: Anti-Fraud Policy			
53. Footer: Anti-Corruption Policy			
54. Footer: Anti-Bribe Policy			
55. Footer: Anti-Kickback Policy			
56. Footer: Anti-Influence Policy			
57. Footer: Anti-Interference Policy			
58. Footer: Anti-Intimidation Policy			
59. Footer: Anti-Extortion Policy			
60. Footer: Anti-Racketeering Policy			
61. Footer: Anti-Organized Crime Policy			
62. Footer: Anti-Cyberstalking Policy			
63. Footer: Anti-Cyberstalking Policy			
64. Footer: Anti-Cyberstalking Policy			
65. Footer: Anti-Cyberstalking Policy			
66. Footer: Anti-Cyberstalking Policy			
67. Footer: Anti-Cyberstalking Policy			
68. Footer: Anti-Cyberstalking Policy			
69. Footer: Anti-Cyberstalking Policy			
70. Footer: Anti-Cyberstalking Policy			
71. Footer: Anti-Cyberstalking Policy			
72. Footer: Anti-Cyberstalking Policy			
73. Footer: Anti-Cyberstalking Policy			
74. Footer: Anti-Cyberstalking Policy			
75. Footer: Anti-Cyberstalking Policy			
76. Footer: Anti-Cyberstalking Policy			
77. Footer: Anti-Cyberstalking Policy			
78. Footer: Anti-Cyberstalking Policy			
79. Footer: Anti-Cyberstalking Policy			
80. Footer: Anti-Cyberstalking Policy			
81. Footer: Anti-Cyberstalking Policy			
82. Footer: Anti-Cyberstalking Policy			
83. Footer: Anti-Cyberstalking Policy			
84. Footer: Anti-Cyberstalking Policy			
85. Footer: Anti-Cyberstalking Policy			
86. Footer: Anti-Cyberstalking Policy			
87. Footer: Anti-Cyberstalking Policy			
88. Footer: Anti-Cyberstalking Policy			
89. Footer: Anti-Cyberstalking Policy			
90. Footer: Anti-Cyberstalking Policy			
91. Footer: Anti-Cyberstalking Policy			
92. Footer: Anti-Cyberstalking Policy			
93. Footer: Anti-Cyberstalking Policy			
94. Footer: Anti-Cyberstalking Policy			
95. Footer: Anti-Cyberstalking Policy			
96. Footer: Anti-Cyberstalking Policy			
97. Footer: Anti-Cyberstalking Policy			
98. Footer: Anti-Cyberstalking Policy			
99. Footer: Anti-Cyberstalking Policy			
100. Footer: Anti-Cyberstalking Policy			

EXHIBIT D (cont.) — Client Management

1. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
2. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
3. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
4. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
5. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
6. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
7. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
8. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
9. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
10. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process

☐ Make a copy of this

☐ Save

☐ Print

☐ Share

1-2-1 Coaching Setup and Process sections

1. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
2. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
3. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
4. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
5. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
6. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
7. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
8. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
9. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process
10. 1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process	1-2-1 Coaching Setup and Process

EXHIBIT D (cont.) — Coach's F Case number: D-93497819, Attachment: 4

Coach's F			
Category	Item	Item Name (ID)	Description
1.1.1 Coaching Setup	Session	1.1.1.1 Coaching Setup	This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.
1.1.2 Coaching Process	1.1.2.1 Coaching Process	1.1.2.1 Coaching Process	This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.
Example Nation Coaching Notebook			This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.
Group Coaching Setup			This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.
Group Coaching Process	1.1.2.1 Coaching Process	1.1.2.1 Coaching Process	This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.

Personalised coaching notes dated 04/03/26

Coach's F			
Category	Item	Item Name (ID)	Description
1.1.1 Coaching Setup	Session	1.1.1.1 Coaching Setup	This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.
1.1.2 Coaching Process	1.1.2.1 Coaching Process	1.1.2.1 Coaching Process	This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.
Example Nation Coaching Notebook			This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.
Group Coaching Setup			This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.
Group Coaching Process	1.1.2.1 Coaching Process	1.1.2.1 Coaching Process	This is the first session of the coaching process. It is a 30-minute session where the coach and client discuss the client's goals and the coach's role.

What NOT to do this week:

- Social profiles
- Call recordings

Initial Next Steps - 04/03/26

North Star (keep this simple)

One goal is what you can sell this niche and offer repeatedly using 26 or different 1 then build the fun one around other works.

Step 1: Get your Niche and Offer locked

Case number: D-93497819, Attachment: 4

EXHIBIT E — 1-2-1 COACHING THREAD (MAR 3–4)

Case number: D-93497819, Attachment: 4

Dedicated 1-2-1 coaching channel with Zoom call scheduled.

EXHIBIT E — 1-2-1 Zoom Call Scheduled

Dedicated 1-2-1 coaching channel



<https://us02web.zoom.us/j/87875884245>
Link available tomorrow or Thursday.



William Marceau 10:12 AM
10:00am tomorrow works for me



Phil Charlton 10:15 AM
Great, here is your link: <https://us02web.zoom.us/j/84106909765>

Personal Zoom link provided for 1-2-1 call

Join our Cloud HD Video Meeting

Coach sets up Notion, Pulse access, and Zoom link — same day.

EXHIBIT E (cont.) — Coach Sets Up Notion & Pulse Access



can you please provide me with the pulse access as it is part of the program and can you also explain why when I click on the email link you sent me for notion it takes me to propane guest ?



William Marceau 11:11 AM
Also How do I schedule live cal with you as that is also part of the services

Coach configures Notion, arranges Pulse, provides Zoom



Additionally when im logged into circle it does not show me any available live

Coach identifies and resolves access issue same day.

EXHIBIT E (cont.) — Coach Identifies &

Case number: D-93497819, Attachment: 4

so I dont seem to have any access to any of the features in circle and all the links in notion bring me back to the email marketing page

William Marceau 10/11/2024
are you able to jump on a call

Phil Charlton 10/11/2024

Access issue diagnosed and fix communicated same day

William Marceau 10/11/2024
it really seems like I just got scammed

Phil Charlton 10/11/2024
Don't panic. I can assure you there is zero scamming going on here

William Marceau 10/11/2024
can you please let me know when its been fixed and what happened

William Marceau 10/11/2024
thank you

Phil Charlton 10/11/2024
Okay so this is a simple fix. You just need to sign the Ts and C's, you should have been sent this upon point of sale. When you logged into Circle there should have seen a pop up saying that if you don't see anything you need to sign the Ts and Cs. Please let me know if nothing happens after you've signed them but it should resolve that for you.

EXHIBIT F — COACHING THREAD (MAR 5–14)

Case number: D-93497819, Attachment: 4

Cardholder confirms signed terms. Coach resolves access — all modules unlocked.

EXHIBIT F — Terms Signed, Access Unlocked (Mar 5)



★ Phil Charlton 08:24 PM

<https://us02web.zoom.us/j/87875884245>

Cardholder confirms signed terms received

7:57 AM



William Marceau 08:27 PM

I just got the email with my signed invoice this morning after signing the terms sent from renni however I dont see any changes to my account yet ?

Coach resolves access — all modules unlocked



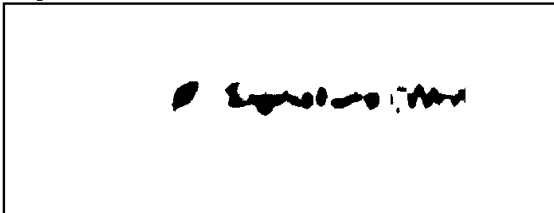
Phil Charlton 08:43 PM

I just came in to see where you were up to. Originally you put the wrong email

Coach proactively reaches out on Mar 12 and 14 regarding refund request.

that it will open up the other modules . . .

Mar 12: Coach proactively checks in about refund



Mar 14: Coach offers to call and resolve directly



William Marceau 10:34:48 PM

ok thank you

10 MAR 12



Phil Charlton 9:00:11 AM

Hi William, how are you getting on. I know you messaged regarding a refund so I just wanted to get in touch to see where you're up to with everything?

14 MAR 14

NEW



Phil Charlton 10:05:15 PM

Morning William, I'm going to give you a call today to talk through the emails you've sent. Until yesterday I wasn't aware this had been raised, so I'm sorry for the delay in getting back to you.

It looks like the request initially went through the front-end sales team, who don't handle refund requests. These are normally managed directly between the member and the coach, which is why it didn't reach me sooner.

I appreciate your patience so far and I'll speak with you shortly so we can go through everything together.

EXHIBIT G — SIGNED CONTRACT, TERMS & INVOICE

Case number: D-93497819, Attachment: 4

Attached as a separate PDF (William-Marceau.pdf). Key details:

- **Date:** Thursday, March 5, 2026
- **Name:** William Marceau
- **Email:** wmarceau@marceausolutions.com
- **Invoice:** INV-6485333402225932830
- **Amount:** £6,300
- **Signatures:** Two — contract agreement and payment acknowledgment
- **Terms:** Full Terms of Use including Section 7 (Refund Policy), Section 12.5 (Dispute Resolution), and programme deliverables.

Exhibit G2 — Cardholder Communication



... JG 5m ago

SMS with Jim Galvin and William

William ↘



20:47

You're a piece of fucking shit bro



Formal Refund Request — Propane Business Me...

> William Marceau ↘ Thank you for your reply. I ... 16 Mar

> Propane 📧 Hi William, Thank you for your emai... 16 Mar

📶 8 older messages

app.close.com